

Tentative Rulings for August 28, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304424	RUIZ vs ECO FARMS AVOCADOS, INC.	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested:

1. Need proposed order/judgment (CMO ¶ H.7-15)
2. Papers have conflicting numbers on settlement administration costs--\$6,250 (moving points and authorities and Edwards Decl) and \$6,650.
3. What will be done with funds from uncashed checks—need to include in proposed order/judgment.
4. Are fees to be split among law firms and did Ruiz and Orozco agree to the split?
5. What amounts will plaintiff's receive from the class/PAGA settlement in addition to the service awards? CMO ¶ H.2(e).
6. No declaration from the settlement administrator. CMO ¶ H.5.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602804	CHAMBERS vs PACIFIC COAST POOLS, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: In this construction defect action, defendant Nautilus Insurance Company demurs to the first amended complaint on the grounds that there is a misjoinder of parties, the FAC is uncertain, and each causes of action fails to state a cause of action. Plaintiffs argue that the breach of contract, disgorgement, and negligence causes of action are not asserted against Nautilus. They argue that although a third-party claimant cannot normally sue a tortfeasor's insurer to obtain insurance benefits, they are not doing that, instead their fraud, Unruh Act and declaratory relief claims are based on Nautilus' claims history and improper acts related to it. Nautilus responds that plaintiffs admit they cannot maintain a direct action for insurance coverage or claims handling and the FAC alleges no harm other than this (and that the opposition relies on facts not alleged in the FAC).

Deny request for judicial notice. Overrule demurrer based on uncertainty. Sustain demurrer to first (breach of contract), second (disgorgement), and fourth (negligence) causes of action without leave to amend. Sustain demurrer as to third (fraud), fifth (Unruh Act) and sixth (declaratory relief) causes of action with 30 days' leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505586	329894 vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling: Appearances requested to discuss the applicability/interpretation of Government Code § 844.6.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505586	329894 vs COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling: No tentative ruling.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507395	ROE vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Appearances requested to discuss the applicability/interpretation of Government Code § 844.6.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507395	ROE vs COUNTY OF RIVERSIDE	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2602118	ROE vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Appearances requested; register of actions does not reflect filing of opposition papers.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2602118	ROE vs COUNTY OF RIVERSIDE	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling: Appearances requested; register of actions does not reflect filing of opposition papers.